

Basalingamma D/O Mallayya Ors vs Mallayya S/O Basanna Ors on 5 January, 2024

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

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NC: 2024:KHC-K:219

RSA No. 7106 of 2011

IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

DATED THIS THE 5TH DAY OF JANUARY, 2024

BEFORE

THE HON'BLE MR. JUSTICE RAJENDRA BADAMIKAR

REGULAR SECOND APPEAL NO. 7106 OF 2011 (PAR)
BETWEEN:

1. BASALINGAMMA D/O MALLAYYA,
AGE: 17 YEARS, MINOR U/G OF HER NATURAL
MOTHER, INDRAMMA W/O MALLAYYA.
2. ISHAMMA D/O MALLAYYA,
AGE: 11 YEARS, MINOR U/G OF HER NATURAL
MOTHER, INDRAMMA W/O MALLAYYA.
3. INDRAMMA W/O MALLAYYA,
AGE: 35 YEARS, OCC: COOLIE,
ALL ARE R/O. KUDLOOR,
NOW RESIDING AT KYATNAL, TQ. & DIST. BIDAR

Digitally signed by
SHILPA R
TENIHALLI
Location: HIGH
COURT OF
KARNATAKA

...APPELLANTS

(BY SRI CHAITANYAKUMAR C. M., ADVOCATE)

AND:

1. MALLAYYA S/O BASANNA,
AGE: 40 YEARS, OCC: AGRICULTURE
R/O. KUDLOOR, TQ: & DIST: BIDAR

2. BASANNA
S/O BHIMAYYA @ MALLAPPA,
SINCE DECEASED BY LR'S

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2A) BASSAMMA W/O. BASSANNA,
AGE: 68 YEARS, OCC: HOUSEHOLD,
R/O. KUDLOOR, TQ. AND DIST. YADGIR.

2B) BASSAMMA W/O. JAMBALAPPA,
AGE: 38 YEARS, OCC: HOUSEHOLD,
R/O. KATZARWADI, NEAR HANUMAN TEMPLE,
(WARD NO. 11), TQ. AND DIST. YADGIR.

2C) MAREMMA
W/O. MARIBASAPPA KONKATDAR,
AGE: 30 YEARS, OCC: HOUSEHOLD,
R/O. SANGWAR, TQ. AND DIST. YADGIR.

3. BASALINGAPPA S/O BASANNA,
AGE: 36 YEARS, OCC: AGRICULTURE,
R/O. KUDLOOR, TQ. & DIST. BIDAR.

...RESPONDENTS

(BY SRI R. J. BHUSARE, ADVOCATE FOR R1 AND R3;
R2(B) AND R2(C) ARE SERVED;
VIDE ORDER DATED 06.06.2023, NOTICE TO R2(A)
IS DISPENSED WITH)

THIS RSA IS FILED U/S. 100 OF CPC, PRAYING TO
ALLOW THE ABOVE REGULAR SECOND APPEAL AND SET ASIDE
THE JUDGMENT AND DECREES DATED 30-11-2010 PASSED BY
THE SENIOR CIVIL JUDGE AT YADGIR IN RA NO. 18/2010 AND
CONFORM THE JUDGMENT AND DECREE DATED 26-03-2010
PASSED BY THE CIVIL JUDGE (JR. DIVN.) AT YADGIR IN OS NO
187/2004.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS
DAY, THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed by the plaintiffs under Section 100 of CPC challenging the judgment and decree passed by the NC: 2024:KHC-K:219 learned Senior Civil Judge, Yadgir (hereinafter referred to as 'first appellate Court') in R.A.No.18/2010 dated 30.11.2010, whereby, the first appellate Court has set aside the judgment and decree passed in O.S.No.187/2001 on the file of the Civil Judge, Yadgir

(hereinafter referred to as 'Trial Court') decreeing the suit for partition in favour of plaintiff Nos.1 and 2 and dismissed the suit in its entirety.

2. For the sake of convenience, the parties herein are referred with the original ranks occupied by them before the Trial Court.

3. The brief factual matrix leading to the case are that, the plaintiffs have filed a suit seeking for the relief of partition and separate possession of their shares in the suit schedule properties. It is the contention of the plaintiffs that plaintiff No.3 is the mother of plaintiff Nos.1 and 2 and defendant No.1 is their father being a husband of plaintiff No.3. It is asserted that defendant No.2 is the father of defendant Nos.1 and 3 and grandfather of NC: 2024:KHC-K:219 plaintiff Nos.1 and 2. It is asserted that the suit properties are the ancestral joint family properties and they are in joint possession. The plaintiffs assert that defendant No.1 has neglected the plaintiffs and driven them out of the house by ill-treating and attempted to alienate the suit properties. Hence, they filed a suit for partition and separate possession.

4. The defendants appeared before the Trial Court in pursuance of the suit summons issued to them and filed their written statement denying the allegations and assertions made in the plaint. It is asserted that defendant No.1 by his hard earned money has purchased item No.3 and defendant Nos.1 and 2 have jointly purchased item No.1 and it is asserted that item Nos.1, 3 and 4 are the self acquired properties of defendant Nos.1 to 3. Hence, they would seek for dismissal of the suit.

5. On the basis of the pleadings, the Trial Court has framed following four issues:

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1. Whether the plaintiff proves that they are the members of joint family and suit properties are the joint family properties of them?

2. Whether the defendants proves that the suit schedule item No.1, 3 and 4 are their self -

acquired properties?

3. Whether the plaintiffs are entitled for the partition as sought?

4. What order or decree?

6. The plaintiff No.3 is examined as PW.1 and two witnesses were examined as PWs.2 and 3. Further, the plaintiffs have placed reliance on four documents marked at Exs.P1 to P4. Defendant No.3 is examined as DW.1 while defendant No.1 is examined as DW.2. The defendants have also placed reliance on three documents marked at Exs.D1 to D3, which are the sale deeds pertaining to the suit item Nos.1, 3 and 4.

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7. The Trial Court after appreciating the oral and documentary evidence, decreed the suit in part by granting 1/9th share to each of plaintiff Nos.1 and 2 in the suit schedule properties.

8. Being aggrieved by this judgment and decree, the defendants have approached the learned Senior Civil Judge, Yadgir in R.A.No.18/2010. The learned Senior Civil Judge after re-appreciating the oral and documentary evidence, allowed the appeal filed under Order 41 Rule 1 read with Section 96 of CPC and set aside the judgment and decree passed by the Trial Court in O.S.No.187/2004 and suit came to be dismissed. Being aggrieved by this judgment and decree, this regular second appeal is being filed by the plaintiffs.

9. Heard the arguments advanced by the learned counsel for the appellants and the learned counsel for the respondents. Perused the records.

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10. This Court while admitting the appeal on 23.01.2017 framed the following substantial question of law:

"Whether the Lower Appellate Court has committed an error in reversing the judgment of the trial Court by relying upon a stray admission in the cross-examination of PW.1 without there being pleading to that effect or an issue being framed before the trial Court to consider that aspect of the matter?"

11. The learned counsel for the appellants would contend that the main ground for allowing the appeal by the first appellate Court is the admissions given by PW.1 regarding she being the third wife of defendant No.1. He would contend that in any event, the status of the plaintiff Nos.1 and 2 as well as plaintiff No.3 is undisputed and no specific pleadings have been made by the defendants in their written statement challenging the status. Hence, he would contend that the first appellate Court is not justified in reversing the finding of the Trial Court.

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12. Per contra, the learned counsel for the respondents would support the impugned judgment and decree passed by the first appellate court.

13. On hearing the arguments and perusing the records, it is the specific assertion of the plaintiffs that plaintiff No.3 is the wife and plaintiff Nos.1 and 2 are the children of defendant No.1. It is asserted that plaintiff No.3 is the legally wedded wife of defendant No.1 and the suit properties are the joint family properties. On the contrary, the defendants have not disputed the status of the plaintiffs specifically, but, their assertion is that item Nos.1, 3 and 4 are their self acquired properties and in

this regard, they placed reliance on Exs.D1 to D3, which are the sale deeds pertaining to suit item Nos.1, 3 and 4.

14. Further, issue No.1 is framed as to whether the plaintiffs have proved that they are the members of the joint family and this issue completely covers the status of the plaintiffs. The plaintiffs in their plaint nowhere pleaded NC: 2024:KHC-K:219 as to when the marriage of plaintiff No.3 was solemnized with defendant No.1 or she being the second or third wife of defendant No.1. On the contrary, in the cross-examination dated 07.11.2009, she has specifically admitted that she is the third wife of defendant No.1. Further, when a suggestion was made that first wife by name Ningamma is still alive, she did not deny this aspect but pleaded ignorance. Apart from that, she has also specifically admitted that the second wife is still alive. Subsequently, after completion of further cross-examination on 26.11.2009, PW.1 has changed her version asserting that when she married to defendant No.1, first wife was already dead and second was not heard of as she left his company. Her further cross-examination reveals that she got knowledge of defendant No.1 contracting first and second marriages prior to marrying within 5 to 6 months of her marriage. In that event, nothing prevented her from pleading in the plaint regarding her status and she pleads that she is a legally wedded wife. When she asserts that she is legally wedded

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NC: 2024:KHC-K:219 wife, she is required to substantiate the said contention and her cross-examination reveals that she cannot be termed as a legally wedded wife as her marriage was solemnized during subsistence of first marriage of defendant No.1. Her marriage is hit by Section 5 of the Hindu Marriage Act.

15. There is no dispute of the fact that plaintiff Nos.1 and 2 are the children of defendant No.1 and plaintiff No.3. Further, the defendants have also not disputed the status of plaintiff No.3 as the wife of defendant No.1. But, the legality of the marriage is an issue. Further, the cross-examination reveals that consistently she has admitted her status as the third wife and it is not a stray admission. Under such circumstances, when the children born out of the void marriage does not get any right to claim partition in the ancestral properties of defendant No.1 during his lifetime. Their right will accrue only after the death of defendant No.1 as his share will be quantified. However, they have got other remedies

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NC: 2024:KHC-K:219 to claim maintenance and it is submitted that they have already filed a petition for maintenance, which is already allowed.

16. Considering these facts and circumstances, the claim of the plaintiffs cannot be allowed and during the lifetime of defendant No.1, plaintiff Nos.1 and 2 cannot file

any suit seeking partition in view of the bar of second marriage under Section 5 of the Hindu Marriage Act. Under such circumstances, the substantial question of law is answered in the negative and as such, the appeal being devoid of any merits, fails. Accordingly, I proceed to pass the following:

ORDER The appeal stands dismissed. No order as to costs.

Sd/-

JUDGE SRT